**Responsible Office: Human Resources**
**Date Reviewed (no substantive changes): 12/03/2024**

# Salary/Pay Administration – Classified Employee

**SALARY ADMINISTRATION**
A classified employee's salary is based on the pay grade assigned to the Civil Service classification to which he/she is assigned. Each position is allocated based on job duties. Pay grades are assigned to each classified position and include a minimum and a maximum salary. The Louisiana Legislature appropriates funds for special raises, which the Governor must sign into effect.

There are six pay grids in the Civil Service system, listed below. The minimum and maximum salaries of each pay grade are set by the Department of Civil Service.

AS – Administrative
MS – Medical
PS – Protective Services
SS – Social Services
TS – Scientific and Technical
WS – Technicians and Skilled Trades

**REGULAR PAY PROCEDURES**
Classified employees are paid bi-weekly over 26 pay periods per year. Checks are normally distributed through direct deposit on alternating Fridays. If a scheduled payday falls on a holiday, employees are usually paid on the day preceding the holiday.

All required deductions such as federal and state taxes, retirement or social security contributions, and Medicare taxes will be automatically deducted from the employee's paycheck. Employees must sign payroll deduction forms to have voluntary deductions made from their checks.

Employees should review their pay advices for errors. If a mistake is found, it should be immediately reported to the supervisor, who in turn needs to report the error to the Payroll Office. The employee may have to wait until the next pay period for the next check to be adjusted.

**CLASSIFIED WAE APPOINTMENT PAY PROCEDURES**
The pay for a person hired on a Classified WAE appointment will normally be set at the minimum of the pay range. With special justification (education, experience, etc.) the pay may be set at any rate in the range. Employees on a Classified WAE appointment are only paid for the hours worked, including overtime if applicable. They do not earn or use leave and do not get paid for holidays.

**OVERTIME PAY PROCEDURES**
**Authority to Require Performance of Overtime**
Civil Service Rule 21.1 states that an employee in the classified service may be required by his/her supervisor to work overtime as needed.

**Determination of Exempt/Non-Exempt Status of Positions**
The university will determine the exempt or non-exempt status of all positions in accordance of the Fair Labor Standards Act (FLSA).

**Authority for Compensation**
All non-exempt employees shall be compensated in accordance with FLSA for overtime conditions that are covered by the FLSA, and shall be compensated in accordance with Civil Service rules for State Overtime. All exempt employees shall be compensated in accordance with Civil Service rules for State Overtime.

**Methods of Compensation**
Overtime compensation may be granted in the form of cash payment or compensatory leave earned; cash shall be paid when required under the FLSA or by Civil Service Rules. Employees working intermittent schedules shall not earn compensatory leave, but shall be paid cash.

**Basis for the Calculation of Hourly Rate of Pay for Overtime**
The hourly rate of pay for State Overtime earned at the hour-for-hour rate shall be calculated using the employee's base pay. The hourly rate of pay for State Overtime earned at the time and one-half rate may be calculated in accordance with the FLSA. The hourly rate of pay for all FLSA overtime shall be calculated in accordance with the FLSA.

**Compensatory Leave – Crediting and Usage**
The employee with the approval of the supervisor/budget unit head may use compensatory leave earned. An employee who has been credited with compensatory leave may be required to take all or part of such leave at any time. The minimum charge for compensatory leave shall be one-quarter hour.

**Definition of State Overtime**
When an employee is not eligible for overtime under the provisions of the FLSA, State Overtime shall be granted as follows:

1. For purposes of calculating hours worked for State Overtime, a day off from work due to paid leave taken or a holiday observed is considered to be a day worked.
2. State Overtime is work performed by an employee at the direction of the appointing authority or his designee:
    - In excess of the employee's regularly scheduled workday.
    - In excess of the employee's regularly scheduled work period.
    - On a holiday, including designated holidays.
    - During official closures.

**Compensation Rate for Non-Exempt Employees**
1. All FLSA overtime shall be compensated at the time and one-half rate.
2. State Overtime shall be compensated at the straight (hour for hour) rate, unless an exception has been granted by the Commission.
3. State Overtime performed during official closures due to emergency situations may be compensated at the time and one-half rate.
4. State Overtime performed on a holiday may be compensated at the time and one-half rate.

**Compensation Rate for Exempt Employees**
1. Exempt employees shall be compensated with one of the following options:
2. No overtime compensation
3. Compensation at the straight (hour for hour) rate
4. Overtime performed during official closures due to emergency situations may be compensated at the time and one-half rate.
5. Compensation at the time and one-half rate may be granted to exempt employees upon Civil Service approval.

**Caps and Required Payment for Overtime Earned at the Time and One-Half Rate**

1. Employees who accrue compensatory leave at the time and one-half rate shall accumulate no more of such compensatory leave than allowed under the Fair Labor Standards Act. The cap is 240 hours for regular employees and 480 hours for law enforcement.
2. Once the maximum balance of compensatory leave earned at the time and one-half rate is reached, any additional overtime worked in excess of the employee's established FLSA work period must be paid to the non-exempt employee in cash at the time and one-half rate.

**Caps, Required Payment, and Cancellation of Overtime Earned at the Hour-For-Hour Rate**

1. Compensatory Leave earned hour-for-hour may be accrued in excess of 360 hours, but not more than 360 hours shall be carried forward from one fiscal year to the next, unless an exception is granted by the Civil Service Commission to maintain essential services necessary to preserve the life, health, or welfare of the public.
2. For non-exempt employees whose hour-for-hour compensatory leave balance exceeds the cap required or granted by exception, payment shall be made within 90 days after July 1 of each year for the excess compensatory leave.
3. For exempt employees whose hour-for-hour compensatory leave balance exceeds the cap required or granted by exception, payment may be made within 90 days after July 1 of each year for the excess compensatory leave. Any excess leave not paid, shall be cancelled.

**Payment or Cancellation of Compensatory Leave Upon Separation or Transfer to Another State Agency**

1. Time and One-Half Compensatory Leave
    - Upon separation or transfer from a department, all compensatory leave earned at the time.

2. Hour-for-Hour Compensatory Leave
    - All unused compensatory leave earned hour for hour by exempt employees may be paid upon separation or transfer from the university at the final regular rate of pay received by the employee.
    - All unused compensatory leave earned hour for hour by exempt employees, if not paid the employee upon separation or transfer, shall be cancelled upon separation or transfer from the University. Such leave shall not be re-credited to the employee upon reemployment by the University or any other agency.
    - Upon separation or transfer, unused compensatory leave earned hour for hour by non-exempt employees shall be paid, at the final regular rate received by the employee. All additional unused leave may be paid or cancelled and shall not be re-credited to him upon reemployment by the University or any other state agency.

The Civil Service Commission may grant exceptions to the overtime rules.

**PERFORMANCE ADJUSTMENTS**

**Policy**

Performance adjustments will only be processed provided the conditions listed below are met.

1. The employee is eligible.
2. The supervisor has conducted the performance evaluation with the employee by August 31st.
3. The supervisor has submitted the appropriate Performance Evaluation System (PES) form with a recommendation for a performance adjustment by August 31st.
4. Funding is available.
5. An employee with a current official overall PES rating of Needs Improvement/Unsuccessful or equivalent shall not be eligible for a performance adjustment.
6. When paid, performance adjustments are effective October 1st annually.

**Procedure**

1. An HR Analyst will send notices to supervisors in advance reminding them to do their respective PES evaluations.
2. PES forms received by HR will be reviewed by HR Analyst for compliance with Civil Service Rules. If incomplete, PES forms will be returned.
3. An HR Analyst will process approved performance adjustments in HRIS after verifying the PES forms have been received and the performance adjustments have been approved by the Delegated Appointing Authority to comply with certification and compliance requirements.
4. Employee Notification forms will be generated and copies distributed to 1) Personnel file 2) Payroll, 3) and the respective employees.

**PROMOTION PAY PROCEDURES**
**Effective: December 1, 2003**
A "Promotion" is a change of a permanent classified employee from a position in one job to a position in another job, which is assigned to a pay grade with a higher maximum. An employee's pay for promotion will be determined based on Civil Service Rule 6.7.

Example 1: Custodian 1 – WS 201 to Custodian 2 - WS 203.
Example 2: Custodian 2 – WS 203 to Clerk 2 - AS 603.

**Pay Rules for Promotions to Jobs within the Same Pay Schedule**
(Example: WS to WS)

- When an employee is promoted to a position in a higher grade, his/her pay shall increase by at least 7%.
- When an employee is promoted to a position in a higher grade, his/her pay shall increase by at least 7%.
- When an employee is given a two-grade promotion, his/her pay shall be increased by 10.5 %
- When an employee is given a three or more grade promotion his/her pay shall increase by 14%.
- An employee shall not be paid below the minimum of the higher range.

**Pay Rules for Promotions to Jobs that are in a Different Pay Schedule**
(Example: WS to AS)

- If the maximum of the job to which he/she is being promoted is less than 14% above his/her current maximum, his/her pay shall be increased by 7%.
- If the maximum of the job to which he/she is being promoted is at least 14% but less than 21% above his/her current maximum, his/her pay shall be increased by 10.5%.
- If the maximum of the job to which he/she is being promoted is equal to or greater than 21% above his/her current maximum, his/her pay shall be increased by 14%.
- An employee shall not be paid below the minimum of the higher range.

**DEMOTION PAY PROCEDURES**
December 1, 2003
A "Demotion" is a change of a permanent or probationary employee from a position in one job to a position in another job, which is assigned to a pay grade with a lower maximum.

- Subject to the provisions of Civil Service Rules 6.15 and 5.6.1(e) and (f), when an employee is demoted for any reason under any circumstances, his pay shall be reduced as outlined below.
- If the demotion is to a job within the same schedule or to a job in another schedule with a lower maximum his pay shall be reduced by 7% and may be set at a lower rate in the range provided that it is no less than the minimum.
- Subject to the provisions of Rule 6.29, the Human Resources Director may grant exceptions to this rule for voluntary demotions. Exceptions shall not be granted in an arbitrary or fraudulent manner designed to increase an employee's rate of pay.

- Exceptions granted should be for voluntary demotions that are in the best interest of the university and the employee.
- The Human Resources Director may waive a pay increase on promotion or reallocation for an employee who has been demoted without a decrease in pay within a six-month period.

**REALLOCATION PAY PROCEDURES**

A "Reallocation" is a change in the allocation of a position from one job classification to another wherein the duties of the position have undergone a significant change.

**Rate of Pay upon Reallocation**

**Pay Rules for Reallocation to Jobs within the Same Pay Schedule**

(Example: WS to WS)

- When an employee is reallocated to a position in a higher grade, his/her pay shall increase by at least 7%.
- When an employee is given a two-grade reallocation his/her pay shall be increased by 10.5%.
- When an employee is given a three or more grade reallocation his/her pay shall be increased by 14%.
- An employee shall not be paid below the minimum of the higher range.

**Pay Rules for Reallocation to Jobs in a Grade with a Higher Maximum in Another Schedule**

(Example: WS to AS, MS, PS, TS, SS)

- If the maximum of the job to which he/she is being reallocated is less than 14% above his current maximum, his/her pay shall be increased by 7%.
- If the maximum of the job to which he/she is being reallocated is at least 14% but less than 21% above his/her current maximum, his/her pay shall be increased by 10.5%.
- If the maximum of the job to which he/she is being reallocated is equal to or greater than 21% above his/her current maximum, his/her pay shall be increased by 14%.
- An employee shall not be paid below the minimum of the higher range.

**DETAIL TO SPECIAL DUTY PAY**

A "Detail to Special Duty" means the temporary assignment of an employee to perform the duties and responsibilities of a position other than the one to which he is regularly assigned, without prejudice to his rights in and to his regular position. An employee who is detailed can never have his pay reduced, even if the detail is to a lower level job.

**Rate of Pay Upon Detail to Special Duty**

**Pay Rules for Detail to Special Duty Jobs within the Same Pay Schedule**

(Example: WS to WS)

- When an employee is detailed to a position in a higher grade, his/her pay shall increase by at least 7%.
- When an employee is given a two-grade detail his/her pay shall be increased by 10.5%.
- When an employee is given a three or more grade detail his/her pay shall be increased by 14%.
- An employee shall not be paid below the minimum of the higher range.

**Pay Rules for Detail to Special Duty Jobs in a Grade with a Higher Maximum in Another Schedule**

(Example: WS to AS, MS, PS, TS, SS)

- If the maximum of the job to which he/she is being detailed is less than 14% above his current maximum, his/her pay **shall** be increased by 7%.
- If the maximum of the job to which he/she is being detailed is at least 14% but less than 21% above his/her current maximum, his/her pay **shall** be increased by 10.5%.
- If the maximum of the job to which he/she is being detailed is equal to or greater than 21% above his/her current maximum, his/her pay **shall** be increased by 14%.
- An employee shall not be paid below the minimum of the higher range.

**ON CALL PAY**

On-call compensation is for hours worked in excess of regularly scheduled hours of duty, when the worker is available for call back to his/her duty station, work-ready, within a specified period of time, at the direction of his/her Appointing Authority. On-call compensation is in addition to the employee's regular pay and is not to be included in terminal leave payments allowed under other sections of the Civil Service Rules. On-call compensation shall not be granted to an employee for his/her regularly scheduled hours of duty. Further, when an employee is called back he/she shall be considered in duty status and eligible for overtime compensation.

Employees may be placed in "on call" status for specific circumstances such as for anticipated severe weather conditions such as hurricanes or ice storms. Employees "on call" are not required to remain on the premises. They are free to engage in personal activities. Employees on call are to respond to calls received and to report to work if needed within 1 hour of being called. Employees in "on call" status cannot engage in activities that would affect their mental or physical alertness.

The university may pay up to $2.25 per hour for "on call" duty without prior approval from Civil Service in accordance with General Circular 929.

**SHIFT DIFFERENTIAL PAY POLICY**

Shift differential will be used for those classifications that have documented recruiting and/or retention problems. Shift differential is extra pay allowances made to employees who work nonstandard hours.

Registered Nurse 1s in the University Health Center are the only classification currently approved for shift differential pay.

Shift 2 = 3:00 p.m.-11:00 p.m. $2.19 per hour
Shift 3 = 11:00 p.m.- 7:00 a.m. $3.29 per hour

Employees must actually work the approved shift to get the shift differential. If they are assigned a different schedule other than shift 2 or 3, they are only eligible for shift differential for the hours outside of the regular university schedule. Employees must work at least 30 minutes outside of their regular schedule before being eligible to receive shift differential pay.

**REEMPLOYMENT PAY POLICY**

"Reemployment" means the noncompetitive appointment of a person based on permanent status attained in former employment in the Classified Service.

The pay of an employee reemployed in a position in the classified service, other than one being restored to duty following military service, may be fixed at the highest rate in the range that does not exceed the highest salary he previously earned while serving with permanent status in a classified position other than detail to special duty. If the range for the job has been adjusted and the range minimum is higher than his former salary, he will enter at range minimum. If the former salary is higher than the range maximum, his pay rate shall be set no higher than the range maximum for the position in which he is being employed.

The Human Resources Director may at any time grant, to the extent permitted by other provisions of Civil Service Rules, any increase for which an employee, having reentered the classified service, possesses eligibility to under this subsection. This Rule shall not apply to a former employee who was dismissed or resigned to avoid dismissal.

The hiring manager or budget unit head may choose to fill a vacant position by hiring an applicant who has prior service as a permanent state classified employee.

If the budget unit head wants to pay the applicant more than the minimum of the pay grade, the budget unit head will need to submit a request through his/her chain of command to the President with justification why the applicant should be paid more than the minimum.

If the President approves the recommendation, Human Resources will make the official job offer once the background check has been completed. Human Resources will notify the budget unit head if the applicant accepts or rejects the offer.

If the President does not approve the recommendation, the applicant will be offered the position at the minimum salary.

**TERMINAL LEAVE PAY POLICY**

**Annual Leave for Classified Employees**

Subject to Civil Service Rule 11.18(a) and (b), each employee upon separation from the classified service shall be paid the value of up to 300 hours of his accrued annual leave in a lump sum disregarding any final fraction of an hour; provided, that the privileges of this rule shall not extend to any employee who is dismissed for theft of agency funds or property. The payment for such leave shall be computed as follows:

- When an employee is paid wages on an hourly basis, multiply his regular hourly rate by the number of hours of accrued annual leave.
- When an employee is paid on other than an hourly basis, determine his hourly rate by converting his salary in accordance with provisions in the uniform pay plan for conversion to a working hourly rate.
- Multiply his/her converted hourly rate by the number of hours of accrued annual leave.

No terminal payment for annual leave earned under these Rules shall exceed the value of 300 hours, computed on the basis of the employee's hourly rate of pay (includes base supplement) at the time of his separation.

**Sick Leave for Classified Employees**

In accordance with Civil Service Rule 11.10.1, when an employee is removed in accordance with Rule 12.6 (a)1, he shall be paid the value of his accrued sick leave in a lump sum, based on his regular hourly rate of pay, unless he is reemployed in probational or permanent status in the classified state service or is reemployed in the unclassified service, without a break in service of one or more working days, in which cases the sick leave will transfer to the employing agency.

**Cancellation or Continuance of Annual and Sick Leave**

1. When an employee separates from the state classified service, all accrued annual leave except that which must be paid and all accrued sick leave except that which must be paid under Rule 11.10.1 shall be cancelled; however, if the employee is reemployed in probational or permanent status in the classified service or is reemployed in the unclassified service without a break in service of one or more working days, all of the employee's annual and sick leave shall be transferred to the employing agency.
2. Subject to the provisions of Rule 11.19, when a former employee is reemployed with permanent or probationary status within 5 years of his separation, all accrued annual and sick leave that was cancelled upon separation shall be re-credited to him; provided, that the privileges of this Rule shall not extend to an employee whose last separation was by dismissal or resignation to avoid dismissal.

**CAREER PROGRESSION GROUPS**

A Career Progression Group is list of positions, designated by the university and approved by Civil Service, within a job series or a similar group of jobs that can be used to hire, train and reallocate employees. The placement of a new hire into the training series is based on previous work experience, education, and job duties assigned. Allocations are made to the highest job title within each group that the duties support. The position may be filled at any point in the career progression group formerly called a training series.

When a position is filled at a lower level, the incumbent must complete all requirements to be considered for reallocation to the next level. To be considered for reallocation, the immediate supervisor and/or the budget unit head must certify that the incumbent has met the requirements to move to the next higher level. The requirements include 1) performed satisfactorily in the lower level position with at least a “Satisfactory” PES rating or higher and 2) have completed twelve months of on-the-job training as well as any other designated training specific to the position, if

applicable. The budget unit head must certify that he/she has considered the PES rating in making the recommendation for reallocation of the individual to the next higher classification in the Career Progression Group.

*[end]*